

the accounts (c), except to the debt of a plaintiff in a creditors' suit, to which debt the defendant, the executor, did not plead the statute by his statement of defence, and on the basis of which the decree has been made (d). If after a decree neither the executor nor the parties beneficially interested before the Court plead the statute, the Court will not set up the statute on behalf of absent parties, but if the executor omits to plead the statute, it is at his own risk (e).

42. Promise of subscription.—It sometimes happens that the deceased made some promise, written or verbal, to subscribe a certain sum for the promotion of some "charitable or public purpose." If nothing has been done in consequence of such promise, the executor or administrator must treat the promise as voluntary, and therefore null. But if other persons have acted on the faith of the promise and would suffer loss if it were not observed, the executor or administrator, it is conceived, would be justified in giving it effect (f).

[43. When trustees may apply under Settled Estates Act.—If an estate is vested in trustees and there is not for the time being any beneficial owner of the rents and profits, the trustees are the proper persons to apply to the Court under the 23d sect. of the Settled Estates Act, 1877, to exercise the powers conferred by the Act (g).]

44. Power to release or compound debts.—A trustee may, under circumstances, release or compound a debt (h). But

if a trustee release or compound a debt without
 [*591] *some sufficient ground in justification (a), or if
 he sell the debt for a grossly inadequate considera-

(c) See *Fuller v. Redman*, 26 Beav. 614; *Shewen v. Vanderhorst*, 1 R. & M. 347; 2 R. & M. 75; *Dring v. Greetham*, 1 Eq. Rep. 442.

(d) *Adams v. Waller*, 35 L. J. N. S. Ch. 727; *Fuller v. Redman* (No. 2), 26 Beav. 614; *Briggs v. Wilson*, 5 De G. M. & G. 12; S. C. 2 Eq. Rep. 153; *Ex parte Dewdney*, 15 Ves. 496.

(e) *Alston v. Trollope*, 2 L. R. Eq. 205; S. C. 35 Beav. 406; and see *Dring v. Greetham*, 1 Eq. Rep. 442.

(f) See *Cooper v. Jarman*, 3 L. R. Eq. 98; *Baxter v. Gray*, 3 Man. & G. 771; *Shallcross v. Wright*, 12 Beav. 558.

[(g) *Vine v. Raleigh*, W. N. 1883, p. 128.]

(h) *Blue v. Marshall*, 3 P. W. 381; and see *Ratcliffe v. Winch*, 17 Beav. 216; *Forshaw v. Higginson*, 8 De G. M. & G. 827.

(a) *Jevon v. Bush*, 1 Vern. 342; *Gorge v. Chansey*, 1 Ch. Rep. 125;